

Mohd Ariz Shamsi v. Uttar Pradesh Power Corporation Limited and others

High Court of Judicature at Allahabad · Division Bench · 14 July 2023 · 2023:AHC:140505-DB · WRIT-C No. 17346 of 2023 · **Writ disposed; fresh application to be considered in accordance with law**

HEADNOTE

Rejection of an electricity-connection application for want of a fresh application. The consumer may, within two weeks, move the fresh application required by an earlier Division Bench, and the Competent Authority shall consider it strictly in accordance with law. Any outstanding dues are to be cleared. The connection was neither granted nor refused.

FACTUAL SUMMARY

Mohd Ariz Shamsi sought an electricity connection from Uttar Pradesh Power Corporation Limited. Writ-C No. 17652 of 2022 was disposed of on 10 January 2023 without any opinion on merits, leaving him to apply within three weeks after completing formalities under the U.P. Electricity Supply Code, 2005, and the Executive Engineer to decide within three weeks. On 27 March 2023 the Engineer rejected application no. 1010773788, stating that no fresh application had been moved and that earlier applications had already been decided.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Fresh electricity-connection application

HOLDING

The petitioner may, within two weeks, move a fresh application for an electricity connection before the Competent Authority, as required by the Division Bench order dated 10.01.2023. If moved in time, that application shall be considered strictly in accordance with law and that earlier direction. Any outstanding dues shall be cleared at the earliest. The writ petition is disposed of on these observations. ¶ 4-5

FLAG The order names the U.P. Electricity Supply Code, 2005 only for formalities and cites no clause number.

PRINCIPLE TAGS

fresh-application-considered-in-accordance-with-law After a connection application was rejected for want of a fresh application, the Court permitted the application contemplated by the earlier Division Bench to be moved within two weeks and directed that it be considered strictly in accordance with law, with any outstanding dues to be cleared, without itself granting or refusing the connection. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO AN ELECTRICITY CONNECTION, AND WHETHER THE REJECTION DATED 27.03.2023 WAS LAWFUL

The Court left him to move a fresh application to be considered in accordance with law. ¶ 4-5

NOT DECIDED — WHETHER ANY DUES WERE OUTSTANDING, AND IN WHAT AMOUNT

The Court only observed that any outstanding dues shall be cleared at the earliest. ¶ 4

